

Smt. Mamta Shah vs Nitin Shah on 27 October, 2023

Author: Anil Verma

Bench: Anil Verma

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IN THE HIGH COURT OF MADHYA PRADESH
AT I N D O R E
BEFORE
HON'BLE SHRI JUSTICE ANIL VERMA

ON THE 27th OF OCTOBER, 2023
CRIMINAL REVISION No. 1649 of 2021

BETWEEN: -

SMT. MAMTA SHAH W/O SHRI NITIN
SHAH, AGED ABOUT 45 YEARS,
OCCUPATION: NOTHING, R/O 45, SANT
NAGAR, CHOTI PATTI, KHANDWA NAKA,
INDORE (MADHYA PRADESH)

.....APPLICANT

(BY SHRI ADITYA GOYAL - ADVOCATE)

AND

NITIN SHAH S/O RAMESH CHANDRA
SHAH, AGED ABOUT 39 YEARS,
OCCUPATION: BUSINESS, R/O GRAM
BHABRA, DISTRICT ALIRAJPUR (MADHYA
PRADESH)

.....RESPONDENT

(BY SHRI RISHIRAJ TRIVEDI - ADVOCATE)

CRIMINAL REVISION No. 809 of 2021

BETWEEN: -

NITIN SHAH S/O RAMESHCHANDRA
SHAH, AGED ABOUT 39 YEARS,
OCCUPATION: BUSINESS, R/O NAYA
BAZAAR, VILLAGE BHABRA, DISTRICT
ALIRAJPUR (MADHYA PRADESH)

.....APPLICANT

(BY SHRI RISHIRAJ TRIVEDI - ADVOCATE)

Signature Not Verified
Signed by: TEJPRAKASH
VYAS
Signing time: 10/31/2023
10:56:39 AM

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AND

SMT. MAMTA W/O NITIN SHAH, AGED
ABOUT 37 YEARS, OCCUPATION : NIL,
R/O : 171A, SHRIKRISHNA AVENUE,
PHASE-II, NIMBODI, INDORE (MADHYA
PRADESH)

(BY SHRI SUDARSHAN JOSHI - GOVT. ADVOCATE)

.....RE

These revisions coming on for admission this day, the court
passed the following:

ORDER

This order shall govern the disposal of both the revisions i.e. Criminal Revision No.1649/2021 (Smt. Mamta Shah Vs. Nitin Shah) and Criminal Revision No.809/2021 (Nitin Shah Vs. Smt. Mamta Shah) as both the criminal revisions are arising out of a common order dated 04/03/2021 passed by Principal Judge, Family Court, Indore (M.P.) in Misc. Criminal Case No.889/2015, whereby the husband Nitin Shah has been directed to pay an amount of Rs.8,000/- per month towards maintenance to his wife Mamta Shah from the date of application i.e. from 08/10/2015.

02. The applicant of Criminal Revision No.1649/2021 has filed an application under Section 125 of Cr.P.C. before the Family Court, Indore by stating that her marriage was solemnized with Nitin Shah on 16/05/2010 as per Hindu rites and rituals at Village Bhabra, District Alirajpur. That was the second marriage of both the parties and prior to their marriage they got divorce from their earlier spouse. At the time of marriage, sufficient dowry were provided to her by her parents, despite which her husband Nitin Shah was harassing her for small things and for demand of dowry asking for bringing Rs.5,00,000/- from her parents so that he can purchase a luxury car and for this reason she was mentally and physically harassed. She was expelled from her matrimonial house on 02/09/2010 to her parental house, after which she reported about the incident to the Bhawarkuan Police Station on 10/09/2010.

03. Thereafter, due to fear of police her husband took her back to matrimonial home. However, after some time, her husband again started harassing her and on 25/01/2011 her husband again left her at her parental house, since when she was forced to reside at her parental house and is completely neglected by her husband. She waited for a long time for husband to take her to matrimonial house but he did not come back. On 15/05/2011, she herself went to her matrimonial house, but Nitin Shah and his family members threatened her that if she will come back, then she will be done to

death. Thereafter, Mamta Shah filed a cruelty case against her husband and his family members, which is still pending before the trial Court. She is also getting interim maintenance of Rs.1,000/- per month awarded by the JMFC in domestic violence proceedings. She is not having any means to income. Her husband Nitin Shah, who happens to be a business person is having an electronic and furniture showroom in the name of Sai Traders from which he is earning Rs.1,00,000/- per month and he is also working as a LIC agent and earning Rs.25,000/- per month. He is also having a house and four plots in his name, but he always neglected her. Accordingly, a prayer was made for direction to the husband Nitin Shah to pay Rs.30,000/- per month towards maintenance to her wife Mamta Shah.

04. The husband Nitin Shah denied the allegations levelled against him and submitted in his written statement that in reality he is not married to Mamta Shah. They got engaged in Sai Mandir, Bhabhra, District Alirajpur and after engagement Nitin Shah and his family members came to know about the immoral behaviour of Mamta Shah, therefore, no marriage was ever solemnized between them. The photographs produced by Mamta Shah are related only with the engagement ceremony. They never lived together as husband and wife. Mamta Shah is a working woman and herself earning sufficient income of Rs.15,000/- per month comfortably. He is working as an insurance agent and hardly earned Rs.10,000/- per month, therefore, Mamta Shah is not liable to receive any maintenance amount from him.

05. After recording the evidence in the matter and after hearing both the parties, the Principal Judge, Family Court, Indore has passed the impugned order dated 04/03/2021 by which the application filed by Mamta Shah was partly allowed by holding that she is entitled for maintenance and fixed the quantum of maintenance to the tune of Rs.8,000/- per month. Being aggrieved by the aforesaid order, both the parties have preferred separate criminal revisions.

06. The wife Mamta Shah preferred another Criminal Revision No.1649/2021 by stating that the trial Court has not properly considered the facts and circumstances of the case and not considered the income of the husband in proper prospective. The amount of Rs.8,000/- per month awarded towards maintenance is grossly inadequate looking to her needs and status of both the parties. Hence, learned counsel for wife Mamta Shah prays that impugned order passed by the trial Court be modified and husband Nitin Shah be directed to make payment of enhanced amount of at least Rs.30,000/- per month to his wife.

07. Criminal Revision No.809/2021 has been preferred by the husband Nitin Shah on the ground that no marriage was ever solemnized between them. Only engagement took place between him and Mamta Shah on 16/05/2010 and only for the purpose of harassing him, Mamta Shah filed an application under Section 125 of Cr.P.C. She has failed to prove her case and the trial Court has passed the erroneous order. Mamta Shah has written her name in every medical slip of the year 2011 (Ex.- P/35 to P/44) as 'Ms. Mamta Shah'. She is involved in blackmailing him. She is a graduate and is earning more than Rs.15,000/- per month from her own sources. Hence learned counsel for the Nitin Shah prays that the impugned order be set aside.

08. Heard learned counsel for both the parties at length and perused the record of Family Court with due care.

09. In the instant case husband Nitin Shah raised a specific plea that he never got married with Mamta Shah, therefore, Mamta Shah is not legally entitled to get any amount of maintenance under Section 125 of Cr.P.C. It is crystal clear that the expression 'wife' as per Section 125 of Cr.P.C. refers to only the legally married wife. Hon'ble the apex Court in the case of Savitaben Somabhai Bhatiya Vs. State of Gujarat and Others reported in AIR 2005 SC 1809 held that "maintenance under Section 125 of Cr.P.C. cannot be enlarged to a woman not lawfully married."

10. Hon'ble the apex Court in the case of Dwarika Prasad Satpathy Vs. Bidyut Prave Dixit & Anr. reported in AIR 1999 SC 3348 has held as under:-

"... the validity of the marriage for the purpose of summary proceedings under Section 125 of the Code is to be determined on the basis of the evidence brought on record by the parties. The standard of proof of marriage in such proceedings is not as strict as is required in a trial of offence under Section 494 of Indian Penal Code, 1860 (in short the 'IPC'). If the claimant in proceedings under Section 125 succeeds in showing that she and the respondent have lived together as husband and wife, the Court has to presume that they are legally wedded spouses, and in such a situation one who denies the marital status can rebut the presumption. Once it is admitted that the marriage procedure was followed then it is not necessary to further probe as to whether the said procedure was complete as per the Hindu rites, in the proceedings under Section 125 of the Code. It is to be noted that when the respondent does not dispute the paternity of the child and accepts the fact that marriage ceremony was performed though not legally perfect, it would hardly lie in his mouth to contend in proceedings under Section 125 of the Code that there was no valid marriage as essential rites were not performed at the time of said marriage. The provision under Section 125 cannot be utilized for defeating the rights conferred by the legislature on the destitute women, children or parents who are victims of social environment. The provision is a measure of social justice and as noted above specially enacted to protect women and children and falls within the constitutional sweep of Article 15(3) reinforced by Article 39 of the Constitution."

11. Hon'ble the apex Court again in the case of Smt. Yamunabai Anandrao Adhav Vs. Anantrao Shivram Adhav reported in AIR 1988 SC 644 has held as under:

"... the expression 'wife' used in Section 125 of the Code should be interpreted to mean only a legally wedded wife. The word 'wife' is not defined in the Code except indicating in the Explanation to Section 125 its inclusive character so as to cover a divorcee. A woman cannot be a divorcee unless there was a marriage in the eye of law preceding that status. The expression must therefore be given the meaning in which it is understood in law applicable to the parties. The marriage of a woman in accordance with the Hindu rites with a man having a living spouse is a complete

nullity in the eye of law and she is therefore not entitled to the benefit of Section 125 of the Code or the Hindu Marriage Act, 1955 (in short the 'Marriage Act'). Marriage with person having living spouse is null and void and not voidable. However, the attempt to exclude altogether the personal law applicable to the parties from consideration is improper. Section 125 of the Code has been enacted in the interest of a wife and one who intends to take benefit under sub-section (1)(a) has to establish the necessary condition, namely, that she is the wife of the person concerned. The issue can be decided only by a reference to the law applicable to the parties. It is only where an applicant establishes such status or relationship with reference to the personal law that an application for maintenance can be maintained. Once the right under the provision in Section 125 of the Code is established by proof of necessary conditions mentioned therein, it cannot be defeated by further reference to the personal law. The issue whether the Section is attracted or not cannot be answered except by reference to the appropriate law governing the parties."

12. In the instant case, wife Mamta Shah (PW-1) categorically stated that her marriage was solemnized with Nitin Shah on 16/05/2010 at Village Bhabra as per Hindu rites and rituals and after the marriage they have visited the temple and photographs (Ex.-P/1 to P/10) were taken at that time. Photographs Ex.-P/11 to P/18 are related with their marriage ceremony and photographs Ex.-P/19 to P/29 are related with their engagement ceremony. She got divorce from his earlier husband through decree (Ex.-P/32). Mamta Shah in paragraph No.10 of her cross-examination categorically stated that at the time of marriage, her parents and all other relatives were present and ceremonies related to Saptpadi, Maang Bharai and Mangalsutra have taken place in front of sacred fire. Her statement is well supported by Anand Shah (PW-2), who happens to be the cousin brother of respondent Nitin Shah.

13. Nitin Shah (NAW-1) admitted in paragraph No.13, 17 and 20 to 24 of his cross-examination that "izn'kZ ih 20 ds QksVks esa ge nksuks ds lkeus gou dq.M izTtofyR gks jgk gSA izn'kZ ih 21 ds QksVksxzKQ eas gou dq.M izTtofyR gS] mlds lkeus] eSa o eerk cSBs gSA eerk yky tksM+s esa vkSj yky pqfM;ksa esa gkFk ij xBca/ku cka/ks gq,] xys esa dkys jax dk eaxyw= vkSj ,d cM+k isafMy okyk xgus Hkh igus gq, gSA ;g dguk Hkh lgh gS fd eSa eerk dks ysdj gkyksy viuh cgu ds ?kj Hkh x;k Fkka Lor% dgk fd ifjokj okys Hkh Fks A edj ladzkrh okys fnu ge yksx xqtjkr x, FksA ogka ij iwjs ifjokj us ladzkr h dk R;kSgkj vPNs ls euk;k Fkka ;g lgh gS fd esjs o esjs ifjokj ds lkFk eerk vdsys xbZ Fkha ;g dguk lgh gS fd izn'kZ ih 1 ds QksVks esa if.Mrth ekStqn gSA ;g lgh gS fd nksuks if.Mr ih 1 ds QksVks es gSAa "

14. From perusal of entire statement of Nitin Shah it appears that all the customary rites and ceremonies of Hindu marriage has duly taken place during the marriage of both the parties. Such rites and ceremonies include saptpadi (that is, the taking of seven steps by bridegroom and bride jointly before the sacred fire), therefore, as per the requirement of valid Hindu marriage described in Section 5 and 7 of Hindu Marriage Act, 1955, the marriage of both the parties was solemnized as per the Hindu customary rites and ceremonies. Nitin Shah did not send any legal notice to his wife Mamta Shah that their marriage was not solemnized after the engagement. Nitin

Shah did not file any civil suit to declare the non-existence of his marital status with Mamta Shah, therefore, influence can be drawn against the husband Nitin Shah.

15. Hon'ble the apex Court in the case of S.P.S. Balasubramanyam Vs. Suruttayan reported in AIR 1992 SC 756 has held that "if a man and a woman are living under the same roof and cohabiting for a number of years, the law would raise presumption that they lived as husband and wife." The law laid down by Hon'ble the apex Court is also applicable in the instant case and on the basis of the aforesaid evidence and law laid down by the apex Court, the trial Court has rightly held that the marriage of Mamta Shah was solemnized with the Nitin Shah and they lived together as husband and wife. Therefor, the contention raised by the husband Nitin Shah cannot be accepted.

16. Hon'ble the apex Court in the case of Dwarika Prasad Satpathy (Supra) has held that "standard of proof of marriage is not as strict as is required under Section 494 of IPC, once it is admitted that marriage procedure was followed, then it is not necessary to probe into whether the said procedure was complete or not. Strict proof of performance of essential rites is not required."

17. Mamta Shah categorically stated that she is doing nothing and is not having any independent source of her own income. Her husband earn income of Rs.3-4 Lakhs per month from the electronic and furniture showroom, LIG agentship and other means. Although Mamta Shah failed to produce any relevant document regarding the aforesaid business of Nitin Shah, but Nitin Shah in paragraph No.9 admitted that he was running a shop namely Sai Electronics at Bhabra. He also admits that he is also working as LIC agent and regularly paying income tax for last 7- 8 years. He also admitted that photographs Ex.-P/51 belongs to his Electronic Items Shop, therefore, looking to the business of Nitin Shah and his income sources, the trial Court has rightly held that he is having sufficient financial sources to pay maintenance amount to his wife.

18. Further, from the material on record, it appears that respondent has not any source of income, whereas no suggestion has been made in her cross-examination that she is earning Rs.15,000/- per month from any work, therefore, the trial Court has rightly held that Mamta Shah is not having sufficient means to maintain herself.

19. From the aforesaid evidence, it is evident that both the parties has entered into marriage in the year 2010 and now they are living separately. It is proved that the wife Mamta Shah is not having any source of income and is unable to maintain herself and Nitin Shah is running so many business and is also working as LIC agent, therefore, this Court is of the opinion that the maintenance amount so fixed by the trial Court is adequate, just and proper. Nitin Shah has failed to make out his case that he is not having sufficient means to pay maintenance of Rs.8,000/- per month to his wife.

20. In light of the aforesaid discussion, no interference is warranted in the impugned order dated 04/03/2021 and being devoid of merit substance both the criminal revisions deserve to be dismissed and are hereby dismissed. There is no order as to costs.

21. Let a copy of this order along with the record be sent to the concerned Family Court for information and necessary compliance.

Certified copy as per rules.

(ANIL VERMA) J U D G E Tej